



## JUSTIFICATION FOR OTHER THAN FULL AND OPEN COMPETITION

### SECTION 1: IDENTIFICATION OF THE AGENCY AND THE CONTRACTING ACTIVITY

|                                                 |                                                                                                                                                                                                                                                                                                      |
|-------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Department of State Contracting Activity</b> | <input type="checkbox"/> Office of Acquisitions Management<br><input type="checkbox"/> Foreign Service Institute<br><input type="checkbox"/> Office of Foreign Missions<br><input type="checkbox"/> U.S. Mission to the United Nations<br><input checked="" type="checkbox"/> Overseas Post Thailand |
| <b>Requiring Activity</b>                       | Human Resources Office                                                                                                                                                                                                                                                                               |

### SECTION 2: NATURE AND/OR DESCRIPTION OF THE ACTION BEING APPROVED

Approval is requested to solicit and award on a sole-source basis a contract to Dhipaya Insurance Public Company Limited for the supplies and/or services described in Section 3 on behalf of the Requiring Activity.

This request is for a one-year interim contract to avoid lapse in local staff's health insurance coverage.

This request is for a fixed price with economic price adjustment requirements type contract.

### SECTION 3: DESCRIPTION OF SUPPLIES/SERVICES REQUIRED TO MEET THE AGENCY'S NEEDS

This contract is for health insurance services for local staff employees at US Embassy Bangkok.

| Local Staff Health Insurance Coverage |            |                    |
|---------------------------------------|------------|--------------------|
| April 26, 2025 - April 25, 2026       | Employees  | Approximately 1400 |
|                                       | Dependents | Approximately 1400 |

The estimated value for the entire period of performance is                      Thai Baht (approximately \$

### SECTION 4: IDENTIFICATION OF THE STATUTORY AUTHORITY PERMITTING OTHER THAN FULL AND OPEN COMPETITION

This acquisition is conducted under the authority of 41 USC 3304, as implemented by FAR 6.3 and substantiated by the following:

- ☐ FAR 6.302-1 – Only one responsible source and no other supplies or services will satisfy agency requirements.
- ☒ FAR 6.302-2 – **Unusual and compelling urgency.**
- ☐ FAR 6.302-3 – Industrial mobilization; engineering, developmental, or research capability; or expert service.



**Office of the Procurement Executive**  
U.S. DEPARTMENT of STATE

- ☐ FAR 6.302-4 – International Agreement.
- ☐ FAR 6.302-5 – Authorized or required by statute.
- ☐ FAR 6.302-6 – National Security.
- ☐ FAR 6.302-7 – Public Interest.

**SECTION 5: DEMONSTRATION THAT THE PROPOSED CONTRACTOR'S UNIQUE QUALIFICATIONS OR THE NATURE OF THE ACQUISITION REQUIRES USE OF THE AUTHORITY CITED**

Dhipaya Insurance Public Company Limited is uniquely qualified to provide these services based upon the following:

- a. Based on the proposals submitted, Dhipaya is the only bidder that could reasonably be expected to meet the needs of the government before a lapse in coverage on April 26, 2025. In a proposal submitted in January 2025, Dhipaya provided satisfactory proof of legal status to provide required services in Thailand and properly addressed each of the minimum coverage requirements.
- b. No other bidder indicated ability to meet minimum coverage requirements or provided proof of certifications required by law to operate in Thailand.

**SECTION 6. DESCRIPTION OF EFFORTS TO ENSURE THAT OFFERS WERE SOLICITED FROM AS MANY POTENTIAL SOURCES AS IS PRACTICABLE, INCLUDING WHETHER A NOTICE WAS OR WILL BE PUBLICIZED AS REQUIRED BY FAR SUBPART 5.2 AND, IF NOT, WHICH EXCEPTION UNDER FAR 5.202 APPLIES**

Mission Thailand observed all standard practices and procedures in an attempt to receive offers for a replacement health insurance contract. The solicitation was properly noticed on SAM.gov and posted for more than two months. A pre-bidding conference was coordinated with representation from five independent bidders.

The proposed contract was solicited on November 20, 2024. Bidding ended on January 21, 2025. Only two bids were received in response to the posted requirement. Both responses were deemed not technically acceptable. Dhipaya was eliminated for failure to register in the System for Award Management (SAM) at the time of the submission. The other submission was not responsive to the requirements of the solicitation and did not meet the minimum coverage requirements of the proposed contract.

**SECTION 7. DETERMINATION BY THE CONTRACTING OFFICER THAT THE ANTICIPATED COST TO THE GOVERNMENT IS FAIR AND REASONABLE**

The Contracting Officer has determined the anticipated cost of \$ \_\_\_\_\_ to the Government of the supplies/services covered by this J&A will be fair and reasonable based on comparison to substantially similar



items and market prices. By signing the justification, the Contracting Officer makes a determination that the cost of \_\_\_\_\_ to the Government is expected to be fair and reasonable.

## **SECTION 8. DESCRIPTION OF THE MARKET RESEARCH CONDUCTED (SEE PART 10) AND THE RESULTS OR A STATEMENT OF THE REASON MARKET RESEARCH WAS NOT CONDUCTED**

The contracting officer (CO) performed extensive market research to determine price reasonableness in January 2025. Two methods were employed based on the information publicly available about the cost of private health insurance in Thailand. Because of the extensive nature of the requirements mandated by the Department's Global Talent Management (GTM), only those health insurance plans which could be considered "premium" or "comprehensive" were considered.

### *Method 1 – Comparison with Average Cost Information*

Research identified four reputable sources of available health insurance cost information. It must be noted that the coverage requirements required by Post are significantly more complex and extensive than standard insurance coverage in Thailand. Market research indicated that the cost of the type of insurance required by the Embassy in Thailand is 100,000 to 200,000 THB (\$2941 - \$5882) per year per person.

### *Method II – In Depth Analysis of Available Premium Cost Information*

Using price data separate from that used in Method I, the CO performed an additional analysis to approximate what an "average" employee and an "average" dependent should cost using detailed premium prices for private insurance in Thailand based on age groups. To determine "average" the demographic (age) information provided to all bidders was used to group individuals. Because the age of employees differs from that of dependents, the two values could be expected to differ. The most comprehensive of the listed insurance plans was used to compare; however, it is noteworthy that this plan still provided less coverage than that mandated by GTM. The plan used for evaluation included a deductible that must be met prior to coverage taking effect for certain services. As the Government's model does not include a deductible, the additional cost of the deductible was included to provide a more accurate estimate.

The full analysis has been documented for internal government use only. The proposed per person cost is in the range of these estimates.

## **SECTION 9. ANY OTHER FACTS SUPPORTING THE USE OF OTHER THAN FULL AND OPEN COMPETITION**

Mission Thailand's current contract took effect on April 26, 2020, and ends on April 25, 2025. Failure to limit sources would result in a lapse in required health insurance coverage to more than 2200 employees and dependents. A lapse in coverage would have a significant negative impact on the local employee work force and violate the local compensation plan and requirements of Global Talent Management (GTM).



## Office of the Procurement Executive

U.S. DEPARTMENT of STATE

Post fully competed this requirement in 2024-2025 to establish a new contract for health care coverage for base year and four option years. No proposals were received that could be deemed technically acceptable. The company which Post intends to award this interim contract to was found unacceptable for the sole reason that the company was not registered in the System for Award Management (SAM) at the time of submission. This will be a one-year, interim contract only to allow Post to re-compete the requirement and establish a longer-term contract in coordination with A/GA. From the documents submitted, Dhipaya is the only vendor capable of providing the necessary services for Post.

### **SECTION 10. LISTING OF THE SOURCES, IF ANY, THAT EXPRESSED, IN WRITING, AN INTEREST IN THE ACQUISITION**

The proposed contract was solicited on the System for Award Management (SAM.gov) on November 20, 2024. Bidding ended on January 21, 2025.

Five companies initially expressed interest in the acquisition and requested to attend the pre-bidding conference.

Only two bids were received in response to the posted requirement. Of these two responses, both were deemed not technically acceptable. Dhipaya was eliminated for failure to register in the System for Award Management (SAM) at the time of the submission. The other submission was not responsive to the requirements of the solicitation and did not meet the minimum coverage requirements of the proposed contract.

### **SECTION 11. STATEMENT OF THE ACTIONS, IF ANY, THE AGENCY MAY TAKE TO REMOVE OR OVERCOME ANY BARRIERS TO COMPETITION BEFORE ANY SUBSEQUENT ACQUISITION FOR THE SUPPLIES OR SERVICES REQUIRED**

Post plans to conduct a full and open competitive award in 2026.



## **SECTION 12. CERTIFICATIONS**

All reviews and approvals should be completed in the order listed unless otherwise authorized or required.

### **TECHNICAL AND REQUIREMENTS CERTIFICATION (FAR 6.303-2(b))**

I certify that the facts and representations under my cognizance which are included in this Justification and its supporting acquisition planning documents, except as noted herein, are complete and accurate to the best of my knowledge and belief.

**Technical Cognizance:**

**SIGNATURE:**

\_\_\_\_\_  
Daniel Brockman  
Contracting Officer, US Embassy Bangkok

\_\_\_\_\_  
Date

**Requirements Cognizance:**

**SIGNATURE:**

\_\_\_\_\_  
Bic Leu  
Senior Human Resources Officer

\_\_\_\_\_  
Date

### **LEGAL SUFFICIENCY REVIEW**

This J&A is hereby determined to be legally sufficient.

**SIGNATURE:**

\_\_\_\_\_  
Kathleen Martin

\_\_\_\_\_  
Date



# Office of the Procurement Executive

U.S. DEPARTMENT of STATE

## CERTIFICATIONS (Continued)

### CONTRACTING OFFICER CERTIFICATION (FAR 6.303-2(a)(12))

I certify that this submission is accurate to the best of my knowledge, and that it contains complete information necessary to enable other officials to make an informed recommendation for approval or disapproval.

#### SIGNATURE:

\_\_\_\_\_

Daniel Brockman  
Contracting Officer

\_\_\_\_\_

Date

#### SIGNATURE:

\_\_\_\_\_

Jerome Hohman  
Management Officer

\_\_\_\_\_

Date



**Office of the Procurement Executive**  
U.S. DEPARTMENT of STATE

**SECTION 13. APPROVALS**

**COMPETITION ADVOCATE  
SIGNATURE:**

\_\_\_\_\_  
Sharon James  
Competition Advocate

\_\_\_\_\_  
Date

*NOTE: Each review must stipulate and include lower level signatory concurrence only prior to the higher dollar threshold approval. Signatories shall not exceed FAR or U.S.C. dollar threshold authority.*